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कर्मचारी भविष्य निधि संगठन

(श्रम एवं रोजगार मंत्रालय, भारत सरकार)

EMPLOYEES' PROVIDENT FUND ORGANISATION

(Ministry of Labour & Employment, Govt. of India)

मुख्य कार्यालय / Head Office

भविष्य निधि भवन, 14-भीकाजी कामा प्लेस, नई दिल्ली-110 066.

Bhavishya Nidhi Bhawan, 14, Bhikaiji Cama Place, New Delhi - 110 066.

LC-4/5/13/Judgement

Dated 12.07.2013

To

4331

12 JUL 2013

All Additional Central P. F. Commissioners (Zones)

All Regional P.F. Commissioners

Regional Offices/Sub Regional Offices

Sub:- Forwarding of important Judgments by District Consumer Forums in Complaint No. 513/11 and Complaint No. 2049/09- reg.

Sir,

Please find enclosed herewith copies of the orders delivered by District Consumer Forum, Mysore in the matter of Complaint No. 513/11 filed by Sri B. Hanumantha Rao wherein the complaint was dismissed based on delay of 37 years in filing case and another complaint filed by Sh. C.R. Menon in Complaint No. 2049/2009 wherein the Hon'ble District Consumer Forum, Bangalore had 67 hearings and finally decided that without exercising option the complaint is not entitled to pensionary benefits and dismissed the complaint.

2. It is requested to utilize the above orders while defending the similar cases.

Encl: as above



Yours faithfully,

(P. K. Udgate)

Addl. Central P. F. Commissioner (Compliance)

Copy to: RIFC, NDC for upload on website

E-mail: rpfcbglr.vsnl.net



EMPLOYEES' PF ORGANIZATION
RO-BANGALORE, BANGALORE REGION, KARNATAKA
(MINISTRY OF LABOUR, GOVT. OF INDIA)
#13, RAJA RAM MOHAN ROY ROAD, P.B.NO.25146
BANGALORE - 560 025

Tel: 080-22216566

Fax: 080-22291945

No.KN/PF/BG/LC/2013-14/80

Dated: 22.05.2013

By name to: Smt. Anita Sinha Dist
To RPF I (L)

The Central P.F.Commissioner
Head Office,
New Delhi.

प्राप्ति दि./Receipt Date 28/5/13
समय/Time 12.40 PM
क्षेत्रीय प्र.नि.आयुक्त-1 (समान्य/विशेष)
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'COURT MATTER'
'BY SPEED POST'
May be circulated.
28.5.13

Sir,

Sub: Forwarding of important Judgments by
District Consumer Courts in Complaint No.
513/11 and Complaint No.2049/09 - reg.,

RC II / SO Legal

570
28/5/13

Please find enclosed herewith copies of judgments delivered by District Consumer Forum in respect of the following cases for reference and for circulation.

1. Complaint No.513 /11 filed by Sri.B.Hanumantha Rao Vs The RPFC, Bangalore and other, order dated 01.4.2013. Wherein the complaint was dismissed based on delay of 37 years in filing case and dismissed the complaint.
2. Complaint No.2049 /2009 filed by Sri.C.R.Menon Vs The RPFC, Bangalore and 3 others, order dated 14.3.2013. Wherein the Hon.DCF, Bangalore had 67 hearings and finally decided that without exercising option complainant is not entitled to pensionary benefits and dismissed the complaint.

Encl: As Above

Yours faithfully,

(K.NARAYANA)

REGIONAL P.F.COMMISSIONER-I
R.O.BANGALORE.

RSD
29/05/13

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30/5/13

**IN THE DISTRICT CONSUMER DISPUTES REDRESSAL
FORUM MYSORE.**

Complaint No. 513/2011 dated 01.04.2013

Present : 1. **Sri. T.H. Narayanagowda,** **President.**
2. **Sri Shivakumar.J.** **Member.**
3. **Smt. M.V. Bharathi** **Member**

Complainant : B. Hanumantha Rao S/o late B. Hanumantha Rao, R/at D.No.2632, 14th cross, Basaveshwara road, Chamundipuram, Mysore-570004. Dead by LRs

(1)Smt. H. Lakshamma W/o late B. Hanumantha Rao, R/at D.No.2632, 14th cross, Basaveshwara road, Chamundipuram, Mysore-570004.

(2)Smt. H. Bhargavi D/o late B. Hanumantha Rao, W/o G.S.N. Murthy, R/at No.252, 9th main, 2nd cross, Hanumanthanagar, Bangalore-560019.

(3) Smt. H. Sharada D/o late B. Hanumantha Rao, W/o late G.N. Sathyanarayana, R/at No.742, 42nd cross, Rajajinagar, Bangalore.

(4) Sri. H. Sathyanarayana S/o late B. Hanumantha Rao, R/at No.1412/C, 7th cross, 'C' block, Rashtrakavi Kuvempu road, Mysore.

(5) Sri. H. Raghuveer S/o late B. Hanumantha Rao, R/at D.No.2632, 14th cross, Basaveshwara road, Chamundipuram, Mysore-570004.

(6) Smt. H. Srimathi D/o late B. Hanumantha Rao, W/o late M.V. Srinivasa Murthy, R/at No.199, 4th cross, 'C' block, 1st stage, J.P. Nagar, Mysore-570008.

(7)Smt. H. Jayashree D/o late B. Hanumantha Rao, W/o G. Nagaraj, R/at No.61, 2nd main, Nagendra block, Mysore bank colony, Bangalore-560050.

(By Sri. H.Kumar., Advocate)

V/S

Opponents : 1. The Regional P.F. Commissioner, No.8, Rajaram Mohan Roy road, P.B.

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Complaint No.513-2011
Date of complaint : 14.10.2011
Date of disposal:01.04.2013

No.2584, Bangalore-560025.

2. The Employees PF Organization, Sub Regional office, Ministry of Labour, Govt. of India, Bhavishya Nidhi Bhavan, # 109-128, 2nd stage, Gayathripuram, Mysore-570019.
3. The Employees PF Organisation, Regional office, Ministry of Labour, Government of India, Bhavishya Nidhi Bhavan, P.B. No.25146, # 13, Rajaram Mohan Roy road, Bangalore-560025.

(O.P. Nos.1 & 2 by Sri. AVJ., Adv., O.P.3-Exparte)

(Order dictated by Sri. T.H.Narayana Gowda, President)

ORDER

This is a complaint filed by the complainant Under Section 12 of the C.P. Act 1986 against the opponents for directing them to settle the E.P.F. amount of Rs.2,00,000/- approximately along with interest at the rate of 18% p.a. from the date of complaint till the date of realization, compensation of Rs.10,000/- towards mental agony and costs of the complaint etc.,

2) After the admission of the complaint as usual issued the notices to the opponents by RPAD. In pursuance of the same, the opponent Nos.1 & 2 appeared before this Forum though their counsel and resisted the complaint on several grounds by filing the written version and urged for the dismissal of the complaint with costs. But the opponent No.3 remained absent in spite of service of notice. Hence, the opponent No.3 has been placed exparte. Thus the opponent Nos.1 and 2 are the only contesting opponents in this complaint.

3) After the filing of version by the contesting opponents, the case was posted for filing the affidavit of the complainant. Thereupon the complainant's GPA holder has filed the affidavit in

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Complaint No.513-2011
Date of complaint : 14.10.2011
Date of disposal:01.04.2013

lieu of evidence and relied upon several documents in support of the case made out in the complaint and closed the evidence. Thereafter, the contesting opponent Nos.1 and 2 have filed the affidavit of opponent No.2 and relied upon the copy of the order passed in writ petition No.47547/2003 dated 08.02.2005 in support of their defence and closed their evidence. Hence, thereafter heard the arguments of both sides partly and posted the case for hearing further arguments. At that stage, the learned counsel appearing for the complainant filed a memo reporting the death of the complainant and further files an application for bringing his LRs on record. The contesting opponent Nos.1 and 2 have filed the objections to the said application. Hence, after hearing the arguments of both sides on the said application and considering the material on record, the said application was allowed as per the orders dated 05.12.2012 and permitted the LRs to come on record. Accordingly, the complaint was got amended and the amended complaint was also filed. Thereafter, the 1st LR and wife of the deceased complainant has filed her additional affidavit in lieu of evidence on behalf of all the LRs and closed their evidence. Thereafter the case was posted the filing the additional affidavit of the contesting opponents. But the contesting opponents have not filed any additional affidavit in spite of giving sufficient opportunity. Hence, thereafter heard the arguments of both sides and then posted the case for orders.

4) In view of the contentions taken by both the parties and the arguments submitted by their learned advocates, the points that would arise for our consideration are as follows:-

- 1) Whether the complaint is barred by time as contended by the contesting opponents?



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- 2) Whether the LRs of the deceased complainant are entitled for any of the reliefs claimed in the complaint?
- 3) What order?

5) Our findings on the aforesaid points are as follows:-

Point No.1:- In the affirmative.

Point No.2:- In the negative.

Point No.3:- As per final order for the following.

REASONS

6) Point Nos.1 & 2:- As per the averments of the complaint, it is the case of the complainant that he was the employee of erstwhile company namely The Mysore Chemicals and Fertilizers Ltd., Belagola since November 1937 till the date of its liquidation during the year 1974. He was also the member of the provident fund trust of the said company and he was contributing the amounts from his salary till the date of liquidation of the said company in the year 1974. In spite of his repeated demands, the accumulated amount was not paid by the said company on the untenable ground of attachment order passed by the Registrar of Co-operative Societies, Bangalore. The employees Provident fund amount is not liable to be attached by any court and therefore the opponent No.1 has also written the letters dated 09.01.1975 and 17.01.1975 to the manager of the said company directing him to settle the dues of E.P.F amount to the complainant. Subsequently, the said order of attachment was also vacated by the Hon'ble High Court and thereafter also the complainant had approached the Manager of the said company several times demanding him to settle the said amount. In spite of the same, the said amount was not settled by the Manager of the said company on any or the other pretext. Subsequently, the exemption granted to the

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said company was cancelled by the opponent No.1 and after the liquidation of the said company, the accumulated amount of Rs.10,745/- standing in the provident fund trust account of all the eight employees of the said company including the complainant was transferred to the account of the opponent No.1 maintained with the SBM, Belagola vide challen dated 28.02.1983 and also informed the same to the opponent No.1 as per the letter dated 28.02.1983. The said amount is still with the opponent No.1 and in spite of the same, the opponents have not settled the amount of the complainant so far, though he had approached them several times and written several letters demanding the payment of the amount due to him. Thus the matter of settlement of his amount is dragged on from the year 1974 on an untenable grounds and the said inordinate delay in non-settlement of the E.P.F. amount of the complainant in spite of repeated oral and written demands right from the year 1974 is a deficiency in service on the part of the opponents. As a result of which, the complainant has suffered lot of mental agony and monetary loss. Therefore, the opponents are liable to compensate the same to the complainant by paying the compensation. Hence, when all his sincere efforts to get the said amount went in vain, the complainant has got issued the legal notice dated 13.05.2011 to the opponents by RPAD. In spite of receiving the said notice, the opponents have not settled the amount. But the opponent Nos.2 and 3 have given the untenable reply. Hence, this complaint is filed by the complainant against the opponents. Mainly on these averments, the complainant has filed this complaint against the opponents and urged for allowing the same with costs.

7) On the other hand, the contesting opponent Nos.1 and 2 have admitted the main case of the complainant regarding the liquidation of The Mysore Chemicals and Fertilizers Ltd., Belagola in



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the year 1974 and their prompt intervention by writing letter dated 09.01.1975 to the manager of the said company to settle the amount and the copy of the same was also sent to the complainant for taking necessary action for the recovery of the said amount etc., as true. But the contesting opponents have denied the rest of the case of the complainant including the deficiency in service on their part etc., alleged in the complaint as false and further contended that the copy of the letter dated 09.01.1975 was also sent to the complainant with a view to take necessary action against the liquidated company to recover the amount due to him. In spite of the same, the complainant has not taken any action against the said company for the recovery of the amount and filed this complaint after a long lapse of 37 years. They have further contended that in the basic returns in the form No.9 of the said establishment, the name of the complainant is not there and no amount is standing in his credit and therefore, the question of settlement of any amount to the complainant does not arise. The contesting opponents have further contended that the amount claimed by the complainant is pertaining to the year 1974 and this complaint is filed by the complainant in the year 2011 i.e., after the lapse of about 37 years is hopelessly barred by law of limitation and therefore the same is liable to be dismissed on the ground of limitation itself. They have also contended that the records pertaining to the period of the complaint are not available with them and therefore not possible to confirm the stale claim of the complainant. Thus the opponents have contended that there is absolutely no deficiency in service on their part and therefore they are not liable for any of the amounts claimed in the complaint. In spite of the same, the complainant has filed this false complaint solely with the intention of harassing the opponents. Therefore the complaint is not maintainable in law or on facts and liable to be dismissed in limine. Mainly on these grounds, the contesting opponents have

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urged for the dismissal of the complaint with costs.

8) Bearing in mind, the aforesaid contentions taken by both the parties, now we shall proceed to examine the material on record to find out whether the complaint filed by the complainant is barred by law of limitation as contended by the contesting opponents and whether the LRs of the deceased complainant are entitled for any of the amounts claimed in the complaint. In the version, the contesting opponents have taken the contention that the amount claimed in the complaint is of the year 1974 and the deceased complainant had filed this complaint in the year 2011 i.e., after the long lapse of 37 years and no application is filed for the condonation of delay in filing the complaint and therefore the complaint is liable to be dismissed as hopelessly barred by law of limitation. On the other hand, the learned counsel appearing for the LRs of the deceased complainant has submitted that the deceased complainant was demanding the said amount right from the year 1974 i.e., right from the date of liquidation of the said company during the year 1974 and the opponents have not denied his claim so far and on the other hand, the opponents are dragging on the matter of settlement of the said amount on one or the other pretext. Therefore the complaint filed by the deceased complainant is in time and not barred by time as contended by the contesting opponents. Thus the learned counsel appearing for the LRs of the deceased complainant has urged for rejecting the said contention of the contesting opponents and to decide the complaint on merits. But admittedly the complainant's company namely The Mysore Chemicals and Fertilizers Ltd., Belagola was liquidated in the year 1974 and thus the E.P.F. amount claimed in the complaint is the amount due to the complainant even in the year 1974 and this complaint is filed by the complainant in the year 2011 i.e., after a long lapse of 37 years from the date of accrual of the



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cause of action even in the year 1974. Of course, there is sufficient material on record to show that the deceased complainant had made several correspondences right from the year 1974 demanding the said amount. But admittedly, the deceased complainant had not initiated any legal proceedings either against the manager of the liquidated company or against the opponents for the recovery of the amount due to him. Therefore, solely on the basis of the several correspondences made by him right from the year 1974 will no way save the period of limitation commenced in the year 1974. Thus the complaint filed by the deceased complainant is a time barred complaint as rightly contended by the contesting opponents. Admittedly, the complainant has not filed any application for stay in filing the complaint and therefore, we have no other alternative except to hold that the complaint is liable to be dismissed as barred by law of limitation as rightly contended by the contesting opponents.

9) Even as per the decision reported in III (2009) CPJ 75 (SC) (State Bank of India V/s National Insurance Co. Ltd., and another), the Hon'ble Supreme Court has clearly held that the period of limitation commences from the date of accrual of cause of action and the same does not continue till the denial of the claim. In the other decision reported in II (2009) CPJ 29 (State Bank of India V/s B.S Agricultural Industries), the Hon'ble Supreme Court has clearly held that in order to decide the complaint on merits, it must be filed within the limitation period of two years from the date of cause of action and the Foras have no jurisdiction to decide the time barred complaint and further the Hon'ble Supreme court has held in the same decision that the deciding of the time barred complaint is nothing but committing an illegality and such orders are liable to be set aside at the instance of the aggrieved party. In view of the



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aforesaid principles of law laid down by the Hon'ble Supreme court and the material already discussed above, we have no other alternative except to accept the defence of the contesting opponents and to hold that the complaint is hopelessly barred by law of limitation and liable to be dismissed on that ground itself as rightly urged by the contesting opponents and therefore the complainant is not entitled for any of the reliefs claimed in the complaint. Accordingly, we answer the point No.1 in the affirmative and the point No.2 in the negative.

10) Point No.3:- In view of the reasons and the findings recorded on the point Nos.1 and 2, we hold that in the ends of justice, the complaint is liable to be dismissed with a direction to the parties to bear their own costs. Hence in the final result, we proceed to pass the following,

:: ORDER ::

The complaint is hereby dismissed as barred by law of limitation and the parties are directed to bear their own costs.

(Order dictated, corrected and then pronounced in the open Forum on this 1st day of April 2013)

M. V. Dhanraj
Member 1/4/13

S. H. Narayana Gowda
Member 01/04/13

S. H. Narayana Gowda
President 1/4/13

CK



DECLINED TO BE TRUE COPY (FREE)

H. C. Choudhary
Asst. Registrar-Cum-Assl.
Administrative Officer, 3/4/13
District Consumer Disputes
Redressal Forum,

Mysore DATED: 3-4-2013.

COMPLAINT FILED ON: 25.08.2009

DISPOSED ON: 14.03.2013

BEFORE THE DISTRICT CONSUMER DISPUTES REDRESSAL
FORUM AT BANGALORE (URBAN)

14th DAY OF MARCH 2013

PRESENT:- SRI. B.S.REDDY

PRESIDENT

SMT. M. YASHODHAMMA

MEMBER

COMPLAINT NO.2049/2009

COMPLAINANT	C.R.Menon S/o Late V.Govinda Menon, Aged about 65 years, No.A.2, Brunton Court, No.5/15, Brunton Cross Road, Bangalore-560 025. (KR/11596/2323 to KN/14075/616) Adv: Sri. S.Guruprasad, V/s.
OPPOSITE PARTIES	1. The Regional Commissioner, The Employees Provident Fund Organization, No.13, "Bhavishya Nidhi Bhawan", Rajaram Mohan Roy Road, Bangalore-560 025. 2. The Regional Commissioner, The Employees Provident Fund Organization, 341, Bandra (East), Mumbai-400051. 3. The Regional Commissioner The Employees Provident Fund Organization, 37, Royapettah High Road, Chennai-600014. 4. The Regional Commissioner The Employees Provident Fund Organization, "Bhavishya Nidhi Bhawan", Plot No.43, Sector 44, Institutional Area, Gurgaon, Haryana-122002.



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	5. The Regional Commissioner, The Employees Provident Fund Organization, Jayalakshmi Shopping Plaza, I & II Floor, Anna Salai, Swarnapuri, Salem. Adv:Sri.Nandita Haldipur.
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ORDERS

SRI. B.S.REDDY, PRESIDENT

The complainant filed this complaint under Section 12 of the Consumer Protection Act, 1986 seeking direction against the Opposite Parties (herein after called as O.Ps) to make arrangement to pay the family pension under the Employees Family Pension Scheme 1971 Act, get realize the pension amount deposited in E.P.F.account No.KR/11596/2323 to KN/14075/616 in favour of this complainant with interest at 18% p.a. on the allegation of deficiency in service on the part of OPs.

2. The case of the complainants to be stated in brief is that:

The complainant began his career of service as Manager with M/s Voltas Ltd, (a Tata Group of Companies), on 20.09.1971. After serving M/s Voltas Ltd., for a period of 14 years and 9 months, he was transferred on 30.06.1986, from M/s Voltas Ltd., to M/s Titan Watches Ltd, which is another Tata Group Companies. After serving M/s Titan Industries Ltd, as General Manager of 2 years and 6 months, the complainant left the said concern on 10.01.1989 and joined M/s Carrier Aircon Ltd., Gurgaon, Haryana on 11.01.1989. After serving there for a period of 1 year 11 months left the said concern on 15.12.1990 and joined M/s Titan Industries Ltd., on 16.12.1990. After serving for a period of 7 years 9 months he left that concern on 11.11.1998 and joined M/s ETA General Private Ltd., on 20.03.2000. After serving M/s ETA General Private Ltd., for a period of 2 years, left the same on 31.03.2002 and joined M/s BST Ltd., on 08.04.2002. The complainant attained the age of 58 years on 17.05.2002 and became eligible for superannuation pension while serving at M/s



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BST Ltd, Bangalore. The complainant made a representation to Op1 for settlement of his Pension on 26.11.2008. Even after repeated requests and demands and pursuance also, till date, nothing is forth coming from OPs' side. The complainant having complete pension-able service of 29 years, is entitled for pension under the Employees Pension Scheme, 1995.

3. The complainant had started service initially with M/s Voltas Ltd, a covered establishment under the EPF and FPF Act, on 20.09.1971. Therefore, as per the law this complainant had to be made a member of the Family Pension Scheme 1971. The membership of EPF Scheme 1971 should have been transferred from one EPF Account to another during the entire career of this complainant till he attained the age of superannuation. The complainant got issued legal notice on 05.05.2009, nothing is forthcoming from the side of OPs. Hence, the complaint.
4. On appearance, OP1 filed version contending that the complainant has worked in various places with different companies during his service. Hence for calculation of his pension the details regarding his services from all the companies are required for calculation and payment of pension. That as all the details of his employment are not received hence they have been unable to calculate the pension. This OP has made correspondence with Regional P.F Commissioner, Mumbai through letter dt.17.03.2009 and letter addressed to Regional P.F Commissioner, Salem on 17.03.2009, further, the PRO of SRO, Salem had informed through E-mail to the complainant on 15.05.2009 that Salem office is not having employee account No.223012 under establishment Code No.TN/25186. The Regional Office, Bangalore has not received transfer of FPF service, contribution particulars Annexure K from RPFC Mumbai and RPFC Hariyana respectively. This OP will not find any difficulty to release FPF benefits to the complainant once all details are received from the respective offices. After receipt of from 19(OPF) the Op has made authorization for a payment of Rs.22,14,551/- on 06.11.2008 after merging EPF with effect from 17.05.2002 (after complainant attained the age of 58 years) But for

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the details has to be received from regional Commissioner Mumbai and Regional P.F. Commissioner Hariyana his pension papers could not be processed. Ops will make payment of pension on receipt of pension fund contribution and other details withdrawal benefit cannot be acceded since the member is eligible for pension. That withdrawal can be given only if the member has not rendered eligible service for pension then he is eligible for withdrawal benefit but in this case he is eligible for pension and the question of withdrawal benefit does not arise. Hence, it is prayed to dismiss the complaint.

5. OP2 filed version contending that on communication with the Voltas Ltd., they have sent a letter along with accompanied documents that the complainant was not a member of the Employee's Pension Scheme. As the complainant was never a member of the said scheme, hence no amounts for pension contribution were deducted from his salary. Hence unless the complainant is a member of the Employee Pension Scheme he cannot claim pension. It is denied that the complainant was covered under the Pension Scheme. Hence, there is no deficiency in service on the part of the OP2. Hence, it is prayed to dismiss the complaint.

6. OP4 filed version contended that for calculation of pension the details regarding his service from all the companies are required. The complainant has furnished his account No.HR/4075/EX00075. On examining the records it is found that the said number pertains to one Uday Shankar Nambiar. That the said Uday Shankar Nambiar's account has been settled on 29.05.2009. Hence unless the complainant furnishes the correct number, the OPs cannot settle his claim. The withdrawal benefit cannot be acceded since the member is eligible for pension. That withdrawal benefit can be given for only if the member has not rendered eligible service then he is eligible for withdrawal benefit but in this case, the complainant is eligible for pension the question of withdrawal benefit does not arise. There is no deficiency in service. Hence, it is prayed to dismiss the complaint.



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7. OP5 filed version contended that service rendered by the complainant in M/s Titan Industries Ltd., the establishment in the jurisdiction of this OP, has been verified and found that the said complainant- has not been enrolled under the Provisions of Employees Pension Scheme 1995 for the period from 09.07.1986 to 16.01.1989 and from 10.12.1990 to 11.11.1998. Further the establishment has intimated that the Provident Fund benefits along with employee's contribution have been fully released to the complainant on 20.04.1999 itself. However, the establishment has been informed to enroll the complainant as a member of the Employees Pension Scheme 1995. The complainant is entitled for pension benefits if the complainant has rendered 10 years or more service and completed 50 years of age. Further, if the complainant is willing to repay the amount of withdrawal benefit sanctioned to him under the provisions of Employees Pension Scheme 1995, along with interest, up-to-date, his service rendered in M/s Titan Industries Ltd., Hosur shall be taken into account for calculating the monthly pension benefits. Hence, it is prayed to dismiss the complaint with compensate the costs.
8. OP3 filed Memo adopting version filed by OP5.
9. The complainant in order substantiate complaint averments filed affidavit evidence and additional affidavit evidence and produced documents. The Regional Provident Fund, Commissioner Op1 and OP4 filed affidavit evidence and produced documents. The Assistant Provident Fund Commissioner filed affidavit evidence for Op2 and produced documents. The Regional Provident Fund Commissioner filed affidavit evidence for Op3 & 5 and produced documents.
10. The complainant filed Synopsis and additional Written Arguments. Ops filed Written Arguments.
11. Arguments on both sides heard.
12. Points for our consideration are:

Point No.1:- Whether the complainant proved the deficiency in service on the part of the OPs?

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Point No.2:- Whether the complainant is entitled for the reliefs claimed?

Point No.3:- To what Order?

13. We record our findings on the above points:

Point No.1:- Negative.

Point No.2:- Negative

Point No.3:- As per final Order.

REASONS

As per the Synopsis filed by the complainant, he has worked in University of Allahabad from 03.01.1969 to 30.05.1969 and worked with M/s Everest Advertising Private Limited from 09.06.1969 to 18.09.1971 then worked with M/s Voltas Limited, Bombay from 20.09.1971 to 30.06.1986, thereafter he was transferred from M/s Voltas Limited to Titan Watches Limited and worked there from 09.07.1986 to 10.01.1989. Further he worked with Carrier Aircon Limited Hariyana from 11.01.1989 to 15.12.1990 again the complainant rejoined Titan Watches Limited and worked there from 16.12.1990 to 11.11.1998. Further he worked with ETA General Private Limited, Chennai from 20.03.2000 to 31st March 2002. Then he worked with B.S.T Limited, Bangalore from 01.07.2003 to 30.06.2008.

14. The complainant has not made his employer as parties to this complaint to furnish the details of tenure of his service and the contributions made towards Employees Provident Fund and Employees Pension Scheme. The complainant claims the pensionary benefits under Employees Pension Scheme 1971 and Employees Pension Scheme 1995. The E.P.Scheme, 1971 came into force on 1st March 1971 and under Paragraph 3(a), the Scheme shall apply to every employee who becomes a member of the Employees Provident Fund after 1st March 1971. The complainant claims that he became a member of the Employees Provident Fund for the first time on 20th September 1971, when he had taken employment in M/s Voltas Private Limited consequently E.P Scheme is automatically applicable to him, as he was not member of EPF before commencement of Pension Scheme 1971. Therefore the question of exercise of option referred to in Sub paragraph (2) of Para 4 does not arise. As against this the Learned Counsel for the



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OPs contended that the complainant was already member of the EPF much earlier to 01.03.1971 as he has furnished declaration before the M/s Voltas Private Limited while taking employment declaring that he was already member of EPF while working in the earlier establishment M/s Everest Advertising, Bombay, the complainant has not exercised his option as per sub para 2 of Para4 of the Scheme, he has not become member of EPScheme, no amount from his salary was deducted towards EP Scheme and he has already drawn the entire EPF amount on his attaining age of 58 years, he has suppressed the fact of being member of EPF while working in Everest Advertising Limited. Thus it is contended that there is no deficiency in service on the part of the Ops, the complainant is not entitled for pensionary benefits.

15. It may be noted that after filing the complaint Ops called for the details of the contributions towards E.P Scheme from the employer of the complainant. The Voltas Limited by its letter dt.05.01.2010 marked as Annexure-R2 stated that no Pension Contribution deductions had been made from the salary of the complainant towards Family Pension Scheme 1971, the complainant has not exercised his option as provided under sub paragraph-2 of paragraph 4 of Pension Scheme while he was working in the earlier establishment Everest Advertising Limited, Bombay. Similarly M/s Titan Industries Limited by its letter dt.04.08.2010 marked as EX.R3 informed that the complainant has furnished declaration while taking employment at Voltas Limited. As per that declaration furnished, the complainant has declared that he is a member of the Employment Provident Fund, he was employed in Everest Advertising Private Limited, Bombay, which is an establishment covered under the Employees Provident Funds Act and Scheme 1952. His Provident Fund Account No. is MH4088, further he has declared that he has not withdrawn the total accumulations standing to his credit in the fund. Thus it becomes clear that as per this declaration the complainant was already member of the Employees Provident Fund while he was working in the Everest Advertising private Limited, Bombay. By making such a declaration at the time of joining Voltas Limited, the complainant

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availed the benefit of Provident Fund from the date of joining that establishment i.e., from 20th September 1971. Now the complainant has come up with a case that the Provident Fund Account number furnished in his declaration belongs to that company but not his account number and he was not member of EPF and he has become only member of EPF from 20th September 1971 i.e., subsequent to commencement of that pension scheme. The complainant earlier worked in M/s Everest Advertising Private Limited, Bombay with effect from 09.06.1969 with an existing PF Account Number. The complainant had been a Provident Fund member since 1969 after he joined M/s Everest Advertise limited. It was the duty of the first employer, i.e., M/s Everest Advertising Pvt. Ltd., Mumbai to seek option from interested employees and enroll them including the complainant in the erstwhile Family Pension Scheme 1971. As the complainant had not exercised any such option, the establishment M/s Titan Industries state that they cannot be fixed with any liability in this matter. Thus it becomes clear that M/s Voltas Limited, Bombay and M/s Titan Industries Limited intimated the Ops that the complainant was not at all member of EP Scheme 1971 as he has not exercised his option to become the member, no deductions are made towards the Pension Scheme Contributions.

16. The learned Counsel for the complainant contended that the complainant was on training for a period of 6 months at Everest Advertising Private Limited, Bombay starting from 09.06.1969 to 09.12.1969. The Company's rules did not provide for any P.F. benefits to employees on training and thereafter for a period of two years, after completion of the training period. Therefore technically he would have eligible for P.F. benefits only after 9th December 1971, when he would have completed the required two years statutory probation for being eligible for P.F. benefits. But he resigned from Everest Advertising effective 19th September 1971 and joined Voltas Ltd., on 20th September 1971. Considering his previous experience as a Lecturer at Allahabad University (six months) and also his experience in Everest advertising Pvt. Ltd., Voltas Ltd., made his eligible for P.F. benefits right from the date of



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joining, i.e., 20th September 1971, without insisting for completion of a statutory period of probation. Therefore technically speaking his pensionable service started only on 20th September 1971. Further it is stated that while joining the service at Voltas Limited, he had given them a letter stating that he has worked in Everest Advertising Pvt. Ltd., Bombay, which was registered under the P.F.No.MH/4088, this was the Company's P.F.number in Maharashtra and did not refer to his P.F.number, as he was not eligible for P.F.benefits in Everest Advertising, since he had left the organization before becoming eligible for P.F.benefits. No P.F.amounts was to be transferred to the subsequent employer Voltas Ltd., as there were no amounts to be transferred. It is contended that the purpose of giving the declaration to Voltas Limited was to ensure that they considered him eligible for P.F.benefits right from the date of joining i.e., 20th September 1971, based on his previous experience both at Allahabad University and Everest Advertising Pvt. Ltd., It is also contended that 5 letters issued by M/s Everest Advertising Pvt. Ltd., are produced to show that these letters does not indicate any benefits by way of provident fund provided to the complainant. Thus it is contended that the complainant was not the member of the Employees Provident Fund earlier to 20th September 1971, hence the Family Pension Scheme 1971 paragraph-3(a) is applicable and not paragraph 4 of the EP Scheme, as he was not a member of the E.P.F, before the commencement of the said Scheme. Therefore the question of exercise of option referred to in sub paragraph(2) of paragraph 4 does not arise.

17. It may be noted that the complainant has not produced the rules and regulations of the Everest Advertising Private Limited, Bombay to substantiate that the said rules did not provide for any PF benefits to Employee on training and thereafter for a period of 2 years after completing of the training period. The complainant has worked in the said establishment from 9th June 1969 to 19th September 1971. The EP Scheme 1971 came into force with effect from 01.03.1971, under paragraph 3(a) the scheme shall apply the every employee who becomes the member of the Employee

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Provident Fund after 1st March 1971. As per the declaration furnished before the Voltas Limited the complainant has declared that he is a member of the Employees Provident Fund, he was employed in Everest Advertising Private Limited, Bombay which is an establishment covered under the Employees Provident Fund Act and Scheme 1952 his Provident Fund Account number is MH4088 and he ^{has} not withdrawn the total accumulation standing to his credit in the fund. Thus it becomes clear that as per this declaration the complainant was already member of the employees Provident Fund while he was working in the Everest Advertising Private Limited, Bombay and he has also furnished his Provident Funds account number and he has stated that he has not withdrawn the total accumulation standing to his credit in the fund. By making such a declaration at the time of joining Voltas Limited availed the benefit of Provident Fund from the date of joining that establishment i.e., from 20th September 1971. Now the complainant has come up with a case that the Provident Fund Account number furnished in his declaration belongs to that company but not his account number and he was not member of EPF and he has become member of EPF only from 20th September 1971 i.e., subsequent to commencement of E.P.Scheme 1971 which has come into force on 1st March 1971, as such Para-4 of the scheme is not applicable, the question of exercise of option does not arise.

In our view it is a well accepted principle that a party cannot both approbate and reprobate. He cannot say at one time that the transaction is valid and thereby obtain some advantage to which he could only be entitled on the footing that it is valid and at another say it is void for the purpose of securing some further advantage. As in this case the complainant has furnished the declaration at the time of taking employment in Voltas Limited that he is member of Employees Provident Fund, his account number is MH4088, he has not withdrawn the total accumulation standing to his credit in the fund thereby obtained advantage availing the benefit of the Provident Fund from the date of joining that establishment and now he cannot be permitted to contend that declaration was not



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correct, he was not member of E.P.F the account number furnished belongs to that establishment, for the purpose of securing further advantage of pensionary benefit. From the affidavit evidence of the Ops it becomes clear that the complainant was not a member of Employees Pension Scheme and no deductions were made from the salary of the complainant towards family pension scheme 1971. M/s Voltas Limited in its letter dt.05.01.2010 marked as Annexure-R2 stated that no pension contribution deductions had been made from the salary of the complainant towards Family Pension Scheme 1971, therefore he is not entitled for pension. M/s Voltas Limited has not deducted any amount from the salary of the complainant towards Employees Pension Scheme on account of the fact that the complainant has not exercised his option as provided under sub para (2) of paragraph 4 of the pension scheme while he was working in the earlier establishment Everest Advertising Limited, Mumbai. If he has not stated by filing the declaration that he was member of employees provident fund while working in the said establishment and for the first time he is becoming member of employees provident fund from the date of joining M/s Voltas Limited, Mumbai i.e., from 20.09.1971, the Family Pension Scheme would have been automatically applicable and the establishment could have deducted certain amount from his salary towards Family Pension Scheme. After the complainant attained the of 58 years he has already drawn the entire Provident Fund accumulation amounting to Rs.22,14,551/- as per the affidavit evidence of the Regional Provident Fund Commissioner OP1. We are unable to accept the contention of the complainant that now the complainant is prepared to refund the portion of the amounts received with interest towards Family Pension Contribution. ETA General Private Limited, Chennai where the complainant worked from March 20th 2000 to 31st March 2002 made deduction towards Family Pension scheme from the salary of the complainant total amount of Rs.11,248/-. The other establishments where the complainant worked i.e., Voltas Limited, Titan Industries and Carrier Aircon Limited have not at all deducted any amount from the salary of the complainant towards Family Pension Scheme.

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18. The learned Counsel for the complainant contended that it is compulsory that all companies are legally bound to deduct pensionable quantum of P.F. from Employees P.F. The employer and the Commissioner of Family Fund are responsible for taking the contributions. In case of employer making any default in payment of any contribution to the EPF, the P.F. Commissioner can recover from the employer by way of penalty damages at the rate provided in paragraph-5 of the E.P. Scheme 1995. The responsibility to make contribution to the Pension Fund is that of employer and the Central Government and the employee has no role to play as it is a retirement benefit provided for social security of the employee after long years of service with employers. In our view in case if the complainant had exercised his option under paragraph(2) of Para-4 of the E.P. Scheme 1971 as he was already member of E.P.F much earlier to the commencing of the said scheme, the employers and the concerned P.F. Commissioners could have been held responsible in not deducting the amounts towards Family Pension Scheme Contributions. Under these circumstances, we are of the view that the complainant failed to prove deficiency in service on the part of the Ops. In view of the same, the complainant is not entitled for any of the reliefs claimed. Accordingly, we proceed to pass the following:

ORDER

The complaint filed by the complainant is dismissed. Considering the nature of dispute there is no order as to costs.

Send copy of this order to both the parties free of costs.

(Dictated to the Stenographer and typed in the computer and transcribed by her, verified and corrected, and then pronounced in the Open Court by us on this the 14th day of March 2013.)



MEMBER
14/03/2013

TO RE COPY (FREE)

14/03/2013

PRESIDENT
14/03/2013